# Names, Dates and Fine Print: What to Notice in Mom's Papers Before You Ask What She Can Keep

Fifteen things to notice and write down on deeds, statements, beneficiary forms and mail, with no interpreting.

You've started going through Mom's folders: the file cabinet at the house, the drawer where the statements go. There are a lot of names, dates and account titles, and it's hard to tell which ones are worth writing down.

This guide names fifteen things worth noticing in her papers and, for each, what to write down. Notice and record. Don't interpret. What a name on a deed or a line on a statement means for what Mom may be able to keep is a question for your Medicaid planner or an elder law attorney, and the notes you keep are what make that conversation useful. A few items carry a general explanation from a public source, marked with a number; the wording about what to write down is ours.

## The house

### 1 The names on the deed

**NOTICE** The names printed on the deed itself, exactly as they appear, and the date on it.

**WRITE DOWN** The names, word for word, the date, and where the deed is kept. If nobody can find it, write that down.

### 2 Who lives in the house

**NOTICE** Who lives there now: Dad, and anyone else in the family.

**WRITE DOWN** Each person's name, how they're related to Mom, and roughly since when.

### 3 Mail about the house

**NOTICE** The property tax bill, the homeowner's insurance notice, a mortgage or home-equity statement, and any letter that uses the word “lien.”

**WRITE DOWN** Who sent it, the date, and what it's about in one line. Don't decide what it means.

## Accounts

### 4 The names on each account [1]

**NOTICE** The account title at the top of each statement: Mom alone, Mom and Dad, or Mom and someone else. In a joint account the money is jointly owned, so every name on it is worth copying.

**WRITE DOWN** The title exactly as printed, the bank or company, and the date of the statement you copied it from.

### 5 Retirement accounts

**NOTICE** Statements for a retirement account or a pension, and whose name each one is in.

**WRITE DOWN** The kind of account, whose it is, and where the statements are sent.

### 6 Named beneficiaries

**NOTICE** A beneficiary named on a retirement account, an insurance policy or a bank account, and the date on the form if you can find it.

**WRITE DOWN** Who is named, on what, and when. If nobody remembers what a form says, write “form not found.”

### 7 Things owned with someone else

**NOTICE** Anything Mom owns together with another person: a car, a second property, an account with one of the children.

**WRITE DOWN** What it is, every name on it, and who would know the details. It's a fact for the list, nothing more.

## Trusts, wills and insurance

### 8 The word “trust” [1]

**NOTICE** “Trust” or “trustee” in an account title, on the deed or on a lawyer's letter. A trustee is the person who makes decisions about the money or property in a trust.

**WRITE DOWN** The trust's name as printed, its date, the trustee's name, and where the document is. What the trust does is a question for an elder law attorney.

### 9 A will [2]

**NOTICE** Whether Mom or Dad has a will, the legal document that sets out a person's wishes for their property and belongings. Look for the date and the name of the law office on it.

**WRITE DOWN** That it exists, its date, and where it's kept. You don't need to study it.

### 10 Insurance policies

**NOTICE** A life insurance policy, or any other policy in Mom's or Dad's name: the company, whose policy it is, and who is named on it.

**WRITE DOWN** The company, the owner, anyone named to receive it, and where the papers are.

## Bills and letters

### 11 The facility's paperwork

**NOTICE** The admission agreement, any other papers Mom or Dad signed there, and the monthly statement.

**WRITE DOWN** What was signed, by whom and when, and where the copies are.

### 12 What leaves Mom's accounts for care

**NOTICE** The payments for her care on the statements: the amount, the date, and the account each one came from.

**WRITE DOWN** A plain month-by-month list. No totals and no projections.

### 13 Letters from the state [3]

**NOTICE** Any letter from the state Medicaid agency or another state office, if there has been one, and whether it uses the words “estate recovery.” That is the name for Medicaid seeking repayment, under certain circumstances, of some costs after a recipient dies.

**WRITE DOWN** The sender, the date, any reference number and the phone number on it. Keep the envelope. Ask the office that sent it, or your Medicaid planner, what it's about.

## What's been said and done

### 14 What you've been told [4]

**NOTICE** Each thing someone has said about what Mom can keep, the house or Dad's share. Medicaid's eligibility rules vary from state to state, so it matters where a statement came from.

**WRITE DOWN** What was said, who said it, when, and whether that person knows Mom's situation. Mark the rest “to confirm.”

### 15 Planning already in place

**NOTICE** Papers from anything a lawyer or a financial professional has already done for Mom and Dad: a letter, a signed document, a folder with a firm's name on it.

**WRITE DOWN** Who did the work, when, and where the papers are. What it does is a question for the person who did it or for an elder law attorney.

**When a note isn't enough**

Some things on this list need a person as well as a note. A letter or a bill you don't understand goes to the office that sent it. A question about what a deed, a trust or a beneficiary form does goes to an elder law attorney. And if anyone in the family is thinking of changing whose name is on the house or an account, the Consumer Financial Protection Bureau's guide for homeowners says to seek advice from legal and tax professionals, because transferring property can have significant financial implications. If you're not sure where a question belongs, ask your Medicaid planner.

**What this guide doesn't do**

It doesn't say what any of these mean, whether anything is counted for Medicaid, or what Mom or Dad may be able to keep. It isn't legal, financial or tax advice. The professionals answer those questions, and they do it better with your notes in front of them.

### Ready for the next step?

You know what's in Mom's papers and where each one is. The planning interview puts those notes to use: it asks about your family's situation, one question at a time, and gives you a free planning report you can bring to any conversation about paying for care.

**Get Your Free Planning Report ›**

**WHERE THIS COMES FROM**


1. Consumer Financial Protection Bureau, Considering a financial caregiver? Know your options (Managing Someone Else's Money)
2. Consumer Financial Protection Bureau, Leaving your home to children or heirs (Older Americans Housing Guide)

3. National Council on Aging, What Is Medicaid Estate Recovery? And How Does It Work?
4. Administration for Community Living (LongTermCare information), Medicaid

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